

HOUSE BILL 897

By Todd

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 221, Part 7, relative to fluoridation of
drinking water.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-221-709, is amended by deleting the section and substituting:

(a) If the quarterly analysis of a water sample from a public water system by a certified laboratory confirms that the level of fluoride in the sample exceeds four-tenths milligrams per liter (0.4 mg/L), the public water system from which the sample was taken must:

(1) Obtain laboratory analysis of water samples monthly for fluoride levels; and

(2) Notify all of its customers that a water sample tested exceeded four-tenths milligrams per liter (0.4 mg/L) of fluoride in a manner established by the department.

(b) Once the monthly analysis of water samples for fluoride conducted pursuant to subdivision (a)(1) confirms that the fluoride level in samples is less than four-tenths milligrams per liter (0.4 mg/L) for three (3) consecutive months, the public water system may resume quarterly laboratory analysis for fluoride.

(c) This part does not prohibit naturally occurring fluoride in the water supply; provided, that fluoride levels do not exceed the maximum levels permitted by federal law or federal regulations.

SECTION 2. Tennessee Code Annotated, Section 68-221-708(c), is amended by deleting the subsection and substituting:

(c) A public water system fluoridating its water supply on May 1, 2025, shall:

(1) Cease the addition of fluoride or fluoride compounds to the water supply no later than July 31, 2025; and

(2) Provide written notice to their customers informing them of the discontinuation of fluoridation and specify the date on which fluoridation will cease. The notice must be issued thirty (30) days prior to the cessation of fluoridation.

SECTION 3. Tennessee Code Annotated, Section 68-221-711, is amended by adding the following new subdivision:

() The addition of fluoride, or a fluoride compound, to the public drinking water supply by the operator of a water supply system in the state.

SECTION 4. This act takes effect May 1, 2025, the public welfare requiring it.